

25SMCV06075 25SMCV06075

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-06-26

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Case Number: 25SMCV06075 Hearing Date: June 26, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

NEW LION ENTERPRISES, LLC, a California
Limited Liability Company,

Plaintiff,

v.

REVIVE WELLNESS COUNSELING

CENTER, a California Corporation;

RODNEY RABBANI, an individual;

NOVA GHANOUNI, an individual;

JOANNA ZIONI, an individual; and

DOES 1 to 50, inclusive,

Defendants.

Case No.:

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[TENTATIVE]

order RE:

DEFENDANTS REVIVE WELLNESS

COUNSELING CENTER, RODNEY

RABBANI, NOVA GHANOUNI, AND

JOANNA ZIONI'S DEMURRER TO

COMPLAINT

BACKGROUND

This

action stems from a lease agreement.

Plaintiff New Lion Enterprises LLC ("Plaintiff") is the owner of the

real property located at 9150 Wilshire Boulevard, Suite 247, Beverly Hills,

California ("Property"). Defendants Revive

Wellness Counseling Center, Rodney Rabbani, Nova Ghanouni, and Joanna Zioni (collectively,

"Defendants") entered a lease agreement with Plaintiff on January 31, 2024,

with an ending date of February 28, 2027.

Plaintiff alleges Defendants

breached the lease agreement by ceasing rent payment and abandoning the premises beginning October 1, 2025. Plaintiff alleges Defendants are liable for unpaid rent and related charges.

The operative complaint,

filed November 19, 2025, alleges claims for (1) breach of contract and (2) common counts.

Defendants' demurrer to the Complaint

was filed April 20, 2026. Defendants argue that the entire pleading (1) does not state facts sufficient to constitute causes of action; (2) is uncertain, and (3) in an action upon a contract, it cannot be ascertained from the pleadings whether the contract is written, oral, or implied by conduct.

LEGAL STANDARD

“[A]

demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents).)

For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 (court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”); Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 (“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

MEET AND CONFER

Code Civ. Proc. § 430.41 requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would

resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41(a).) The parties are to meet and confer at least

five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41(a)(3).)

Defendants' counsel declares that he reached out to Plaintiff's counsel on April 13, 2026, in an effort to meet and confer. (Croddy Decl., ¶ 4.)

Defendants' counsel declares that to date there has been no response from Plaintiff's counsel. (Croddy Decl., ¶ 6.) However, Plaintiff's counsel declares that they did issue a response to Defendants' counsel of record. (Newman Decl., ¶ 3.) Although one attempt by Defendants' counsel does not sufficiently exhaust meet and confer efforts, the Court cannot overrule a demurrer based on an insufficient meet and confer. (Code Civ. Proc., § 430.41(a)(3).)

ANALYSIS

Uncertainty

"A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made". (Butler v. Sequeira (1950) 100 Cal.App.2d 143, 145-146.) Moreover, demurrers for uncertainty are disfavored and will only be sustained where the pleading is so bad that the defendant cannot reasonably respond, i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif. Inc. (1993) 14 Cal.App.4th 612, 616.)

Defendants state that the pleadings in general are uncertain. (Memo, p. 2.) Plaintiff argues that the pleadings are not uncertain because Defendants have clearly ascertained claims made against them. (Opposition, p. 11.) Here, the pleadings are not uncertain as they clearly identify the causes of action alleged against Defendants and Defendants have meaningfully responded to the allegations in the instant motion.

Accordingly, Defendants' demurrer to the entire complaint on the grounds of uncertainty is **OVERRULED**.

Breach of Contract

To

state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If

a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference”. (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) In some circumstances, a plaintiff may also “plead the legal effect of the contract rather than its precise language.” (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Defendants argue that Plaintiff fails to state facts to establish the existence of a contract between Plaintiff and all named Defendants. (Memo, p. 3.) Defendants argue that Defendants Rodney Rabbani, Nova Ghanouni, and Joanna Zioni did not sign the contract provided by Plaintiff in Complaint, so cannot be held personally liable. (Ibid.)

Plaintiff

argues that the lease’s opening recital expressly names Rodney Rabbani, Nova Ghanouni, and Joanna Zioni as tenants. (Opposition, pp. 3, 7.) Moreover, Plaintiff argues that Defendants’ demurrer attempts to attack validity of facts asserted through a pleading challenge. (Opposition, p. 6.)

Here, Plaintiff

has properly alleged breach of contract against Defendants. Plaintiff has alleged the existence of a written contract, attached said contract, and the contract names all Defendants. (Complaint, Exh. A.) Moreover, Plaintiff has alleged that they have fulfilled their obligations, specified the manner in which Defendants have breached the contract, and identified resulting damages. (Complaint, p. 3.) Thus, Plaintiff has sufficiently pled a cause of action for breach of contract. Defendants’ challenge surrounding liability considering the content of the lease agreement is not properly addressed by demurrer. A demurrer

only reviews the sufficiency of the pleadings and does not make evaluations of fact. (Aubry, supra, 2 Cal.4th at 967.)

Accordingly,

Defendants' demurrer as to the first cause of action for breach of contract is OVERRULED.

Common Counts

The

required elements of a common count claim are "(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment. A cause of action for money had and received is stated if it is alleged the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff." (Farmers Insurance Exchange v. Zerlin (1997) 53 Cal.App.4th 445, 460, citation and quotation marks omitted.)

Defendants

argue that Plaintiff has not sufficiently pled an account stated, statement of indebtedness in a certain sum, because Plaintiff and Defendants did not enter into a subsequent agreement on a new stated balance. (Memo, p. 4.) Defendants argue that the cause of action is based on the preexisting lease agreement. (Ibid.)

Plaintiff

argues that an account stated may rest on transactions and balances arising under a preexisting contract, including a lease, where the parties subsequently agree (expressly or impliedly) on the balance. (Opposition, p. 10.) Plaintiff argues that the pleading states that within the last four years an account was stated in writing by and between Plaintiff and Defendants in the principal sum of \$108,772.00, plus prejudgment interest at 10% per annum. (Opposition, p. 4.) Moreover, Plaintiff argues that since the underlying agreement is valid, the cause of action for common counts based on amounts owed for the underlying agreement survives as well. (Ibid.)

Here, Plaintiff

has pled that an account was stated in writing by and between parties in which it was agreed that Defendants owe a debt. (Complaint, p. 4.) Although Plaintiff argues an account of debt was communicated, Defendants take the position that debt was not subsequently agreed to. Nonetheless, "when a statement is rendered

to a debtor and no reply is made ... the law implies an agreement that the account is correct as rendered". (Maggio, Inc. v. Neal (1987) 196 Cal.App.3d 745, 748.) Thus, Plaintiff's pleading is sufficient to establish a statement of indebtedness in a certain sum. Whether the account stated was expressly or impliedly agreed to is an evaluation of fact not addressed by demurrer.

Accordingly, Defendants' demurrer as to the second cause of action for common counts is OVERRULED.

Conclusion

For the foregoing reasons, the Court OVERRULES Defendants' demurrer.

IT IS SO ORDERED.

DATED: June 26, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court